



### CHAPTER liii.

An Act for incorporating and conferring powers on the Ashborne Gas Company. A.D. 1911.  
[18th August 1911.]

**W**HEREAS certain persons under a deed of settlement dated the 30th day of December 1840 formed themselves into a company under the name of "the Ashborne Gas Company" for the purpose of lighting with gas the town of Ashborne and the neighbourhood thereof:

And whereas in the year 1887 the said Company were registered pursuant to the Companies Act 1862 and became incorporated as an unlimited company:

And whereas in the year 1909 certain persons formed themselves into a gas company under the name of "the Ashborne Gas Company Limited" (in this Act referred to as "the limited company") for the purpose of acquiring and they have acquired the undertaking of the unlimited company to manufacture sell and supply light and gas for lighting and other purposes in the town of Ashborne in the county of Derby and the neighbourhood thereof and to carry on there the business of a gas company in all its branches and such company were duly registered under the Companies (Consolidation) Act 1908:

And whereas the present share capital of the limited company consists of twenty thousand pounds divided into two thousand shares of ten pounds each all of which have been created and issued and are fully paid up:

And whereas the gasworks of the limited company are situate on the piece of land described in the schedule to this Act and such gasworks have from time to time been improved and enlarged and the limited company are now supplying gas



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A.D. 1911. within the urban district of Ashborne and the parish of Clifton and Compton in the county of Derby :

And whereas the demand for gas in the district supplied by the limited company has increased and is increasing and it is expedient that the existing gasworks of the limited company be enlarged extended and improved and their mains extended and that additional capital should be provided for such enlargement extension and improvement :

And whereas it is expedient that the Company to be incorporated should be empowered to supply gas in the parishes of Mappleton Offcote and Underwood and Sturston in the county of Derby and the parishes of Mayfield and Okeover in the county of Stafford in addition to the urban district and parish within which the limited company are now supplying gas :

And whereas it is expedient that the limited company should be dissolved and reincorporated with further powers :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Ashborne and District Gas Act 1911.

Incorporation of Acts.

2. The following Act and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely) :—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts ;

The Gasworks Clauses Act 1847 except sections 30 to 34 both inclusive Provided that section 13 of that Act shall be read as if the words "or any premises" were



inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section And provided further that section 35 of the said Act shall be read as if the words from "in case the whole" down to "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the standard rates of dividend or such rates as reduced or increased in accordance with the provisions of this Act and the said provisions of the said Act shall apply as well to the mains pipes and works of the limited company laid down or constructed before the passing of this Act and situate within the limits of supply as to any mains pipes or works which may be laid down or constructed under the authority of this Act; and

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The Gasworks Clauses Act 1871.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

Interpretation.

The expression "the limited company" shall mean the Ashborne Gas Company Limited;

The expression "the Company" shall mean the Company incorporated by this Act;

The expression "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be acquired made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estates right title property privileges and effects and the undertaking of the Company and every part thereof respectively;

The expression "the limits of supply" means the limits as defined by the section of this Act the marginal note of which is "Limits of Act" and within which the Company are authorised by this Act to supply gas.



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Limits of  
Act.

4. The limits of this Act for the supply of gas shall be the urban district of Ashborne and the parishes of Clifton and Compton Mappleton Offcote and Underwood and Sturston in the county of Derby and the parishes of Mayfield and Okeover in the county of Stafford.

INCORPORATION.

Incorporation of Company.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes in this Act mentioned and shall be incorporated by the name of "The Ashborne and District Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General purposes of Company.

6. The Company shall be established for the purpose of acquiring maintaining altering improving extending and enlarging the gasworks of the limited company and of manufacturing storing and supplying gas for lighting heating motive power warming ventilating and any other purpose for which gas is or may be used within the limits of supply and may produce purchase store sell dispose of and deal in gas coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products refuse or residuum arising remaining produced by or resulting or obtained from the manufacture of gas or the materials used therein and may manufacture and sell such articles as can be produced from or by means of the several matters and things aforesaid or any of them and may purchase and store coal oil and other materials employed in the manufacture of gas and generally may carry on any business usually carried on by gas companies or which is or may become incidental thereto and may carry the powers of this Act into execution.

Present property of limited company vested in Company.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and



pipes plant plugs lamps irons retorts gauges meters gas stoves  
fires cookers gas fittings lamp columns and brackets syphons  
apparatus stock effects matters and things which may have been  
by them purchased provided laid down erected or placed in any  
place or house within the limits of supply or which immediately  
before the passing of this Act were the property of the limited  
company and all moneys securities credits effects and other  
property whatsoever which immediately before the passing of  
this Act belonged to the limited company or to any trustee on  
their behalf and the benefit of all contracts and engagements  
entered into by or on behalf of the limited company and  
immediately before the passing of this Act in force shall be and  
the same are hereby vested in the Company to the same extent  
and for the same estate and interest as the same were previously  
to the passing of this Act vested in the limited company or  
any trustee on their behalf and may according to the provisions  
of this Act be held and enjoyed sued for and recovered maintained  
altered discontinued removed dealt with and disposed of by the  
Company as they think fit.

8. Subject to the provisions of this Act the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the holders of shares shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such. But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered

Memoran-  
dum and  
articles of  
association  
of limited  
company to  
be void.

Nothing to  
affect pre-  
vious rights  
and liabili-  
ties.



A.D. 1911. and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act had not been passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts  
prior to pass-  
ing of Act  
to be bind-  
ing.

**10.** Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.  
not to abate.

**11.** Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Trustees of  
limited com-  
pany to be  
indemnified.

**12.** Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately



before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. A.D. 1911.

**13.** From and after the passing of this Act the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of limited company.

**14.** All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

**15.** All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

**16.** Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if they had not been avoided. Certificates &c. to remain in force.

**17.** All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all Books &c. continued evidence.



A.D. 1911. courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to continue until removed.

**18.** All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present registers of members to be continued.

**19.** The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

#### CAPITAL &C.

Capital.

**20.** The capital of the Company shall be thirty thousand pounds of which twenty thousand pounds divided into two thousand shares of ten pounds each is in this Act called "the original capital" and shall be substituted for the existing share capital of the limited company and ten thousand pounds (in this Act called "the additional capital") which shall be raised in manner in this Act mentioned.

Vesting of shares in original capital in present shareholders.

**21.**—(1) The shares in the original capital shall by virtue of this Act be vested in the several persons who immediately before the passing of this Act were the registered holders of shares in the limited company one ordinary share being substituted for each ordinary share of the limited company.

(2) All shares so vested shall be deemed to be fully paid up and shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and encumbrances as at the passing of this Act affected the shares or share for which the same is substituted and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition of or affecting such shares or share and every agreement deed or other instrument or testamentary disposition made before the passing



of this Act and affecting any shares or share in the limited company shall take effect with reference to the whole or a proportionate part as the case may be of the shares substituted therefor and trustees executors administrators or persons under disability may accept the shares to be substituted for the shares in the capital of the limited company held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such shares in the capital of the limited company.

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**22.** The Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof certificates in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof but if any holder of any existing share or shares of the limited company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may retain any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed and an indemnity against any claim in respect of such lost or destroyed certificate is given to the satisfaction of the directors of the Company.

Cancellation  
of existing  
certificates  
and issue of  
new certifi-  
cates.

**23.** The Company may from time to time raise the additional capital not exceeding in the whole ten thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any

Power to  
raise addi-  
tional  
capital.



A.D. 1911. premium which may be obtained on the sale thereof the sum of ten thousand pounds Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than five thousand pounds.

New shares  
or stock to  
be sold by  
auction or  
tender.

**24.**—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the



holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively. A.D. 1911.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

**25.** Except as is otherwise by this Act provided the additional capital created by the Company under this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock and be subject to the like provisions and liabilities as the holders of shares of the same class issued in substitution for existing shares under this Act Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned. Privileges &c. of holders of additional capital.

**26.** The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums Power to borrow.



A.D. 1911. not exceeding in the whole one third part of the amount of the capital which at the time of borrowing has been created issued or raised under the powers or in pursuance of the provisions of this Act But no sum shall be borrowed in respect of any capital so created issued or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Appointment  
of receiver.

27. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Debenture  
stock.

28. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of  
mortgages  
over other  
debts.

29.- All moneys raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.



**30.** If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

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Receipt in  
case of per-  
sons not sui  
juris.

**31.** All money raised under this Act including any premium shall be applied for the purposes of this Act to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create a special purposes fund is made proportionate to the paid up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purposes be reckoned as part of the paid up capital.

Application  
of money.

#### MEETINGS DIRECTORS &C.

**32.** The first ordinary meeting of the Company shall be held in the month of February one thousand nine hundred and twelve and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or at such other time as shall be appointed for that purpose by an order of a general meeting.

First and  
subsequent  
ordinary  
meetings.

**33.** The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be five shareholders present in person holding or representing by proxy not less than one twentieth of the subscribed capital of the Company.

Quorum of  
general  
meetings.

**34.** The number of directors shall be seven but the Company may vary the number provided that the number be not at any time more than seven or less than four.

Number of  
directors.

**35.—(1)** Subject as hereinafter provided the qualification of a director shall be the possession in his own right of not less than twenty shares Provided nevertheless that the qualification of the directors who shall be in office in the limited company at the date of the passing of this Act and who are by this Act appointed first directors of the Company shall so long as they continue to be directors be the qualification held by them in the limited company at the date of the passing of this Act.

Qualification  
of directors.



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(2) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for three months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

Quorum.

**36.** The quorum of a meeting of directors shall be three.

First and subsequent directors.

**37.** John Lister Harry Coates Robert William Gratton John Howell Thomas Kennedy John Thomas Marple and Frank Wright shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

Interim dividend.

**38.** The directors may in any year without calling a meeting of shareholders for the purpose declare interim half-yearly dividends out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividends so declared shall not exceed in any half year one half of the amount of the standard rates of dividend.

Closing of transfer books previous to de-

**39.** The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing



the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

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declaring in-  
terim divi-  
dend.

40. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Period to  
which books  
to be  
balanced.

#### LIMITATION OF PROFITS.

41. Except as by this Act provided the profits of the Company to be divided among the holders of shares or stock in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") that is to say On the original capital the rate of eight pounds in respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Act the rate of five pounds in respect of every one hundred pounds actually paid up of such capital.

Profits of  
Company  
limited.

42. In case in any year or in any half year when a half-yearly dividend is declared the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividends of each class.

Dividends on  
different  
classes of  
ordinary  
shares to be  
paid propor-  
tionately.

43.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

Power to  
create a  
special pur-  
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or



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(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application  
of excess of  
profits over  
authorised  
rates of divi-  
dend.

44. If the clear profits of the undertaking of the Company in any year after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of this Act for any fund or funds thereby authorised amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates on the ordinary and preference capital of the Company.

Power to  
create a re-  
serve fund.

45. Where in any year the dividends on the ordinary share capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividends the Company may in such year set apart such sum as they think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may



accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividends at the authorised rates on the ordinary capital of the Company and save as by this Act provided no sum shall in any year be carried by the Company to any reserve fund.

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#### WORKS AND LANDS.

**46.** Subject to the provisions of this Act the Company may in or upon the lands described in the schedule to this Act maintain and continue alter improve enlarge extend renew or discontinue the existing gas and other works belonging to the limited company and erect make and maintain alter improve enlarge extend renew or discontinue additional and other gasworks and may upon those lands or any part thereof erect construct maintain and as often as occasion may require enlarge alter and improve extend renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas for public and private purposes in bulk or otherwise for lighting heating or motive power within the limits of supply and for the conversion or utilisation and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and may make store and supply gas accordingly and the Company may manufacture sell provide and deal in coke coal-tar asphaltum ammoniacal liquor sulphate of ammonia oil and all other refuse or residuary products arising remaining produced by or obtained from the manufacture of gas by them or the materials used therein and may manufacture produce and sell such articles as can be produced from and by means of the several matters and things aforesaid.

Powers as to construction and maintenance of gasworks &c.

**47.** The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847

Power to lay pipes in streets not dedicated to public use.



A.D. 1911. with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for and not inconsistent with the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to  
utilise pipes  
for ancillary  
purposes.

48. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to  
purchase  
lands by  
agreement.

49. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to sell  
or lease  
lands.

50. The Company may sell and dispose of or may let on lease for such period as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

For pro-  
tection of  
Derbyshire  
and Stafford-  
shire County  
Councils.

51. In executing the works and exercising the powers by this Act authorised so far as they affect any road which may now or hereafter be or become a main road (hereinafter in this section referred to as "any main road") or any county or main road bridge or approaches or other county work in the county of Derby vested in the county council of the administrative



county of Derby and in the county of Stafford vested in the county council of the administrative county of Stafford (each of whom is in this section called "the county council") the following provisions for the protection of the county council shall (unless otherwise agreed) apply and have effect (that is to say):—

A.D. 1911.

- (1) All pipes to be laid in or along any main road or in upon or across any county or main road bridge shall where reasonably practicable be laid in such position in any such road or at the side thereof and at such depth as the county council shall by writing under the hand of their surveyor (hereinafter referred to as "the county surveyor") reasonably direct:
- (2) The surplus paving metalling or materials removed during the laying of pipes or other works shall not be placed on the metalled portion of the road without the written consent of the county surveyor and subject to such conditions and directions as he may reasonably require or give:
- (3) All surplus paving metalling or materials removed during the laying of the pipes or works on any main road or in upon or across any county or main road bridge and not required by the Company for the purpose of reinstating and making good the road or county or main road bridge may be used by the county council for the maintenance and repair of any main or other road in the district and the Company shall on receiving notice from the county surveyor forthwith remove the same to such place or places not more than one mile from the place of excavation as the county surveyor may direct and if the Company fail to do so the county surveyor may remove the same at the expense of the Company:
- (4) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 8 of that Act shall (except for the laying connecting or repairing of consumers' service pipes as to which three days notice shall be given and except in cases of accidental leakage or burst or other like emergency in which case the longest practicable notice shall be given) be not less than seven days instead of three days:



A.D. 1911.

- (5) The plan required by section 9 of the said Act shall be accompanied by a description of the proposed works in the case of any main road and by a section in the case of any county or main road bridge and shall be delivered to the county council or their surveyor by the Company not less than fourteen days before they commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the works:
- (6) Nothing in this Act contained shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine:
- (7) Nothing in this Act contained shall interfere with the right of the county council to alter the level of or deviate or improve in any manner they think fit any main road in or along which any pipes or works of the Company shall have been laid and in the event of any such alteration deviation or improvement being intended by the county council the Company shall at the reasonable expense of the county council in all things and with all convenient speed on receiving ten days' notice (or shorter in cases of emergency) in writing under the hand of the county surveyor so to do alter the position of any such pipes or works in the manner and to such extent as such notice may reasonably prescribe and to the satisfaction of the county surveyor Provided that the county council shall afford all reasonable facilities to the Company for such alteration Provided also that during the alteration deviation or improvement of such main road the county council shall afford all reasonable facilities for temporarily carrying or supporting such pipes or works along the main road so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such pipes or works Provided also that in the case of any main road vested in some authority other than the county council such authority shall for



the purposes of this subsection be substituted for the A.D. 1911.  
county council:

- (8) Nothing in this Act contained shall interfere with the right of the county council at any time or times to remove alter widen reconstruct or rebuild any county or main road bridge or the approaches thereto over near or attached to which any pipes of the Company are carried in the same manner as they might have removed altered widened reconstructed or rebuilt such bridge or the approaches thereto if this Act had not been passed and as if such pipes had not been laid over or near or attached to any such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such pipes are laid being removed altered widened reconstructed or rebuilt as aforesaid the Company shall at their own expense in all things alter the position of such pipes and any works by which the same are carried over or near or attached to any such bridge or the approaches thereto as aforesaid to the satisfaction of the county surveyor Provided that the county council shall afford all reasonable facilities to the Company for such alteration Provided also that during such removal alteration widening reconstruction or rebuilding of such bridge or the approaches thereto as aforesaid the county council shall afford at the expense of the Company all reasonable facilities for temporarily carrying such pipes across the stream river or other place over which such bridge is carried so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such pipes:
- (9) All works of the Company so far as they affect any main road or county or main road bridge shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Company shall not open or break up at any one time a greater length than one hundred yards of any main road nor more than fifty yards where there is only sufficient room for one cart to pass nor in the latter case shall



A.D. 1911.

such openings or breakings up be carried out without leaving where reasonably practicable a clear space of a quarter of a mile between consecutive openings or breakings up unless with the consent of the county council and where any material or soil from any works trenches or excavations in any main road is deposited upon the metalled portion of the main road such material or soil shall be so placed as the county surveyor may reasonably direct. Provided always that where reasonably practicable at least twelve feet of metalled road shall be kept clear for the use of the public :

(10) The Company shall fill in and properly ram and make solid to the satisfaction of the county surveyor any trench or excavation made by them in any main road in the execution or in the repair of the works for the supply of gas by this Act authorised and after they have done so the county council shall make good pave or repair the surface of the main road and in respect of the work so done by the county council the Company shall in respect of the area of the trench where such trench passes under the metalled surface of any road on demand pay to the county council an amount calculated at the price or rate of two shillings and sixpence per square yard in the case of a road made of granite or tar macadam and of one shilling and sixpence per square yard in the case of a road made of slag or limestone and in the case of any other material or of trenches over footpaths or in the unmetalled portions of the road such expense as the county council may reasonably incur in the restoration of the surface :

(11) The Company shall repay to the county council all reasonable expenses necessarily incurred or paid by the county council in the repair and reinstatement of so much of any main road or of the road over any county bridge or the approaches thereto in which the pipes of the Company are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes. All costs charges amounts and expenses payable by the Company to the county council under the provisions of this section shall be



recoverable as a debt due from the Company to the county council : A.D. 1911.

- (12) The county council shall not except in case of their negligence be liable for or in respect of any damage or injury to any pipes connections meter boxes manholes stopcocks or other property of the Company laid or fixed after the passing of this Act in or upon the metalled portion of any main road or county or main road bridge arising from the ordinary use by the county council of a steam or other roller not exceeding fifteen tons in weight or of a traction engine or from the passage of the traffic upon such road :
- (13) If any difference arises between the county council and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the county council and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply thereto.

**52.** The following provisions for the protection of the London and North Western Railway Company and the North Staffordshire Railway Company (each of whom is hereinafter referred to as "the railway company") shall be in force and have effect :—

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him or in the event of disapproval then in such manner as shall be determined by arbitration in manner hereinafter provided and in all things by and at the expense of the

For protection of London and North Western and North Staffordshire Railway Companies.



A.D. 1911.

Company who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any bridge or level crossing the Company shall make compensation in respect thereof to the said railway company the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :

Provided that if the said engineer does not express disapproval of such plans within twenty-eight days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operations the Company may execute the work without his superintendence Provided also that if urgent repairs are required in case of accident the railway company will dispense with the previous approval of plans as aforesaid but the work must be carried out to the reasonable satisfaction of their principal engineer :

Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any work to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

#### PRICE TESTING AND QUALITY OF GAS.

**53.**—(1) The standard price to be charged by the Company for gas supplied by them to persons who shall burn the same

Dividend  
dependent  
on price  
charged.



by meter within the urban district of Ashborne shall be three shillings and fourpence per one thousand cubic feet and such price is in this Act referred to as "the standard price":

A.D. 1911.  
—

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividends payable by the Company on the ordinary share capital or stock as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividends payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by four shillings on every one hundred pounds of ordinary paid-up capital with an eight per centum standard rate of dividend and by two shillings and sixpence on every one hundred pounds of such capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividends payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by four shillings on every one hundred pounds of ordinary paid-up capital with an eight per centum standard rate of dividend and by two shillings and sixpence on every one hundred pounds of such capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

(2) The prices to be charged by the Company for gas supplied by them to persons who shall burn the same by meter in the parishes and places within the limits of supply other than the urban district of Ashborne shall not at any time exceed that for the time being charged by the Company in the urban district of Ashborne by more than sixpence per one thousand cubic feet.



A.D. 1911.

Charge for  
gas supplied  
by means of  
prepayment  
meters.

54.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The Company shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Company in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Quality of  
gas.

55. The prescribed number of candles shall be not less than fourteen.

Testing  
place.

56. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company on the lands described in the schedule to this Act before supplying or within three months after beginning to supply gas under the authority of this Act.



**57.**—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. A.D. 1911.  
Testing  
quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

**58.**—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

**59.** No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving for  
penalties.



A.D. 1911.

SUPPLY OF GAS.

Power to  
supply gas  
fittings  
Fittings not  
to be subject  
to distress.

**60.**—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

(3) Subject as hereinafter provided all such fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that nothing in this subsection shall affect the amount of assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a sufficient mark or brand indicating the Company as the actual owners thereof.

Power to  
enter pre-  
mises and re-  
move fittings.

**61.** The power to enter premises and remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Company to  
pay interest  
on money  
deposited as  
security for  
gas meter &c.

**62.** If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four



[1 & 2 GEO. 5.] *Ashborne and District Gas Act, 1911.* [Ch. liii.]

pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. A.D. 1911.

**63.** In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid on the consumer's premises by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may



A.D. 1911.

refuse to supply gas to the premises until the provisions of this section have been complied with:

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Anti-fluctuators for gas engines.

**64.** Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Consumers to give notice to Company before removing.

**65.** At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to take licences for use of patents.

**66.** The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture



utilisation or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention. A.D. 1911.

**67.** If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pay the same. Power to refuse to supply persons in debt for other property.

**68.** A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company. Notice to discontinue supply of gas.

**69.** In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company. Period of error in defective meters.

**70.** The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply. Company may contract with local authority &c. for supply of gas in bulk.

#### MISCELLANEOUS.

**71.** The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any of such buildings Dwelling-houses for persons in Company's employ.



A.D. 1911. upon any lands for the time being belonging or leased to the Company.

Authentica-  
tion and ser-  
vice of  
notices by  
Company.

**72.** Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company being affixed thereto in writing or by stamp or if it be a notice to pay any charge in respect of a supply of gas by the name either of the secretary or of a collector of the Company being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of  
penalties &c.

**73.** Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of  
demands.

**74.** Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Power to  
apply for a  
Provisional  
Order to  
supply elec-  
trical energy.

**75.** The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 to 1909 make application for a provisional order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application.

Copy of Act  
to be regis-  
tered.

**76.** The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and



register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum or the abstract required, to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

A.D. 1911.

77.—(1) If the Ashborne Urban District Council (in this section called "the council") shall introduce a Bill into Parliament and bonâ fide promote the same in the next session of Parliament for an Act to empower them to purchase the undertaking of the Company the Company shall not oppose such Bill except in so far as they may deem necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

Company  
not to oppose  
application  
by Ashborne  
Urban Dis-  
trict Council  
to purchase.

(2) If the council obtain an Act authorising such purchase they shall give notice of their intention to purchase within three months after the passing of such Act and thereupon the Company shall sell and transfer and the council shall purchase and acquire the undertaking of the Company discharged from their then existing mortgages (if any) or other financial obligations and liabilities.

(3) Any such sale and purchase shall be for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the Company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking



A.D. 1911. of the Company and any arbitrator or umpire (as the case may be) shall not in assessing the amount to be paid by the council to the Company have regard to the fact that the Company have obtained this Act but shall fix such amount as if this Act had not been passed.

(4) In addition to the sum to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company the reasonable costs charges and expenses incurred by the Company (a) preliminary to and of and incident to the promotion of and obtaining this Act (b) relating to the winding up of the Company all such costs charges and expenses to be taxed as between solicitor and client if so required.

(5) The Council shall also pay compensation to any officers and servants except weekly servants in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company on the first day of April 1911 in respect of any loss of office or diminution of salary (which expression shall in the case of the manager of the Company be deemed to include emoluments) by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and no officer or servant who has been in the employment of the Company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to continue in the service of the council.

(6) The Company shall not without the previous consent in writing of the council either enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking or save as hereinafter provided raise any capital in pursuance of this Act prior to the 20th day of November 1911 nor thereafter if the council shall then have given notice of their intention to introduce a Bill into Parliament and shall subsequently introduce such Bill unless or until such Bill shall have been withdrawn or rejected. Provided that this subsection shall not prevent the Company from raising and expending any capital that may be necessary for supplying with gas the premises of Nestlé and Anglo Swiss Condensed Milk Company or the premises of the Children's Home and the council shall repay to the Company the amount of any capital so expended.



(7) For the purposes of this section the expression “the undertaking of the Company” includes all the gasworks engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of the undertaking of the Company to the council save and except premises comprising the eight cottages and gardens in Mayfield Road belonging to the Company and all moneys due or accruing due to the Company the cash balances (other than consumers’ deposits) in the Company’s hands or in those of their bankers or agents securities for money and all sums standing to the credit of their reserve fund and also except movable stock-in-trade gas coal and other stores which shall be purchased by the council by valuation at the date of transfer and the books and papers relating exclusively to the shareholders in and the constitution of the Company.

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**78.** All costs charges and expenses of and incident to the applying for preparing obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act



A.D. 1911.

SCHEDULE referred to in the foregoing Act.

GAS LANDS.

A piece or parcel of land situate in the urban district of Ashborne in the county of Derby belonging or reputed to belong to the limited company and upon part of which their existing gasworks are constructed containing by admeasurement one acre two roods and thirteen perches or thereabouts bounded on the north-west by Mayfield Road on the north-east by a house and garden belonging or reputed to belong to Mrs. Kate Coates Southwick and in the occupation of the Reverend Cecil Francis Tomlinson and by the remainder of the field numbered 185 on the Ordnance map of the parish of Ashbourne (scale  $\frac{1}{2500}$  2nd edition 1900) belonging or reputed to belong to the Nestlé and Anglo Swiss Condensed Milk Company and in the occupation of Thomas Lane on the south-east by the remainder of the field numbered 199 on the said Ordnance map belonging or reputed to belong to the said Nestlé and Anglo Swiss Condensed Milk Company and in the occupation of the said Thomas Lane and on the south-west south and west partly by Henmore Brook and partly by houses and yards belonging or reputed to belong to Arthur Key and in the occupation of Charles Key and William Henry Slater.

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